City of California City
Request for Proposal (RFP)
Landscape Maintenance Services

21000 Hacienda Boulevard
California City, CA 93505

REQUEST FOR PROPOSAL (RFP) FOR LANDSCAPE MAINTENANCE SERVICES FOR THE CITY OF CALIFORNIA CITY

Notice is hereby given that the City of California City will receive sealed proposals at the Office of the City Clerk, City Hall, 21000 Hacienda Boulevard; California City, CA 93505, until **2 P.M. on TUESDAY, OCTOBER 1, 2024**, for LANDSCAPE MAINTENANCE SERVICES.

DUE ……. October 1, 2024

TIME ……Before 2:00 pm

CITY OF CALIFORNIA CITY

Request for Proposal for Landscape Maintenance Services for the City of California City

The City of California City is requesting proposals from qualified contractors to provide all labor, equipment, materials, and performance of operation in connection with Landscape Maintenance Services for:
Group 1- Senior Center, Arts Building, Parks (Central, Balsitis, and Dog)- mowing, maintaining/repairing sprinklers and controllers
Group 2- Center Median on CCB -removing weeds, trimming plants/trees, maintaining sprinklers and controllers
Group 3- City Hall, Police Station, Chamber of Commerce, Aspen Mall, Parking Lots - removing weeds/trash, trimming plants/trees, maintaining sprinklers and controllers
Group 4- Little League Fields- mowing, removing weeds, trimming plants/trees, maintaining sprinklers and controllers
Group 5- Golf Course TDS- mowing, trimming plants/trees, maintaining sprinklers and controllers
The anticipated (2) two-year term of the agreement is January 1, 2025, through December 31, 2026, with the possibility of up to three (3) one-year extensions.

Proposers are specifically directed not to contact any City personnel, other than the Contact Person indicated below, for any purpose related to this RFP. **Unauthorized contact with any City personnel may be cause for rejection of a vendor's proposal.**

All inquiries concerning this RFP should be directed to the following Contact Person:

Joe Barragan
Public Works Director
California City
21000 Hacienda Boulevard
California City, CA 93505

Envelopes/packages containing the proposals are to be marked:

PROPOSAL: "Landscape Maintenance" and **delivered to**:
City of California City
Attn: City Clerk
21000 Hacienda Blvd
California City, CA 93505
Telephone: (760) 373-7140

Projected Timetable

The following dates are set forth for information and planning purposes only. These dates may be changed by the City upon notice to prospective proposers:

Issuance Date . . . . . September 10, 2024
Pre-Proposal Meeting . . . . September 17, 2024, at 10:00 am
Proposal Due Date . . . . . October 1, 2024
Proposal Due Time . . . . Before 2:00 pm

The postmark date will not constitute a timely delivery. Responses received after the above time **will not** be considered. Proposers are solely responsible for ensuring timely receipt of their proposals.

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I. GENERAL INFORMATION

A. Background and Description

California City (City) is located in the Northern Antelope Valley in Kern County, California. It is situated roughly 70 miles east of Bakersfield and 100 miles north of Los Angeles. California City was founded in 1961 and incorporated in 1965. It is the third largest city by land area in the state of California, and its service area encompasses approximately 203 square miles of residential, commercial, industrial, and undeveloped land.

B. Requirements of Successful Proposer

The Successful Proposer (Contractors) submitting a proposal and their subcontractors shall possess the following:

- a valid, current, and in good standing C-27(Landscape) contractor's license issued by the California Contractor's State License Board (CSLB) and comply with all other licenses, insurance, and permit requirements of the City, State, and Federal governments, as well as all other requirements of the law. their funding source(s)
- a current and valid California CSLB license in the classification required by law to perform the scope of work for this agreement
- a Business License with the City of California City

C. Scope of Work

All labor, equipment, materials, and performance of operation in connection with Landscape Maintenance Services for:
Group 1- Senior Center, Arts Building, Parks (Central, Balsitis, and Dog)- mowing, maintaining/repairing sprinklers and controllers.
Group 2- Center Median on CCB -removing weeds, trimming plants/trees, maintaining sprinklers and controllers.
Group 3- City Hall, Police Station, Chamber of Commerce, Aspen Mall, Parking Lots - removing weeds/trash, trimming plants/trees, maintaining sprinklers and controllers.
Group 4- Little League Fields- mowing, removing weeds, trimming plants/trees, maintaining sprinklers and controllers.
Group 5- Golf Course TDS- mowing, trimming plants/trees, maintaining sprinklers and controllers.

D. Selection Process

1. All proposals received by the specified deadline will be reviewed by a City Evaluation Committee. After the initial scoring, the Evaluation Committee may select those firms deemed most qualified for this project for further evaluation. Interviews of these selected firms may be conducted as part of

the final selection process. Proposers are advised that the City, at its option, may award a contract strictly based on the initial proposals, and not create a short list of proposals for further consideration. The firm selected by the Evaluation Committee will be recommended to the City Council to enter into a contract with the City, but the Council is not bound to accept the recommendation or award the contract to the recommended firm.

2. The following is a list of general criteria that may be used by the Evaluation Committee in determining its recommendation to the City Council or Board of Directors. **Please note that the Evaluation Committee may consider any information they deem relevant in determining a recommendation to the City Council or Board of Directors and may give each of the criteria considered as little or as much weight as they consider appropriate.**

   a. The Proposal
   b. Qualifications
   c. Experience
   d. Quote of Costs to the City per Group

3. The City reserves the right to reject any and all proposals and to waive informalities and irregularities in any proposals received. The absence of required information may render a proposal non-responsive, at the sole discretion of the City, resulting in the rejection of the proposal.

4. The City may, during the evaluation process, request from any proposer additional information which the City deems necessary to determine the proposer's ability to perform the required services. If such information is requested, the proposer shall be permitted five (5) working days to submit the information requested.

5. An error in the proposal may cause the rejection of that proposal; however, the City may, in its sole discretion, retain the proposal and make any corrections it deems appropriate. In determining if a correction will be made, the City will consider the conformance of the proposal to the format and content required by the RFP and any unusual complexity of the format and content required by the RFP. If the proposer's intent is clearly established based on a review of the complete proposal submittal, the City may, at its sole option, correct an error based on that established content. The City may also correct obvious clerical errors. The City may also request clarification from a proposer on any item in a proposal that City believes to be in error and make corrections accordingly.

6. The City reserves the right to select the proposal which in its sole judgment best meets the needs of the City. The recommendation by the Evaluation

Committee, and the final selection of a proposer by the City Council, shall be based on any information and criteria the Evaluation Committee and Council consider relevant, which may include criteria not listed in paragraph 2 above.

7. All firms responding to this RFP will be notified of their selection or non-selection in writing after the Evaluation Committee has completed the selection process. All proposers shall have seven days from the date of the notice to submit any additional information **not previously submitted** to the City for final consideration before the Evaluation Committee's recommendation is placed on the City Council agenda.

8. City employees will not participate in the selection process when those employees have a relationship with a person or business entity submitting a proposal which would subject those employees to the prohibition of Section 87100 of the Government Code. Any person or business entity submitting a proposal who has such a relationship with a City employee who may be involved in the selection process shall advise the City of the name of the City employee in the proposal.

9. Any person or business entity which engages in practices which might result in unlawful activity relating to the selection process including, but not limited to, kickbacks or other unlawful considerations paid to City employees, will be disqualified from the selection process.

10. The process, procedures, and evaluation criteria used by City staff and the Evaluation Committee in developing and issuing this RFP and evaluating the proposals received for purposes of making a recommendation to the City Council shall be determined in the sole discretion of the City. Potential proposers shall have no rights whatsoever regarding the processes and procedures used by the City relating to this RFP or the manner in which a proposer is selected by either the Evaluation Committee or the City Council, provided their decisions are not arbitrary and capricious, and there is some reasonable basis for the selection(s) made.

E. Solicitation Caveat

The issuance of this solicitation does not constitute an award commitment on the part of the City, and the City shall not pay for costs incurred in the preparation or submission of proposals. **The City reserves the right to reject any or all proposals or portions thereof if the City determines that it is in the best interest of the City to do so.**

Failure to furnish all information requested or to follow the format requested herein, or the submission of false information, may disqualify the proposer, in the sole discretion of the City. The City may waive **any** deviation in a proposal. The

City's waiver of a deviation shall in no way modify the RFP requirements nor excuse the successful proposer from full compliance with any resultant agreement requirements or obligations.

F. Time

Time and the time limits stated in this RFP are of the essence of this Request for Proposal.

G. Form of Agreement

No agreement with the City is in effect until both parties have signed a contract.

The selected Proposer will be required to execute an agreement with the City for the services requested **within thirty (30) days** of the award. If an agreement on the terms and conditions of the contract that are acceptable to the City, including but not limited to compensation, cannot be achieved within that timeframe, the City reserves the right to continue negotiations or to award the contract to another Proposer and begin negotiations with that Proposer.

Proposers must identify and provide contact information in their proposal of the individual within their organization who is authorized to negotiate the terms and conditions of any agreement between the Proposer and City.

H. News Releases

News releases pertaining to any award resulting from this RFP may not be made without the prior written approval of the City Manager.

I. Statutes and Rules

The terms and conditions of this RFP, and the resulting consulting services and activities performed by the successful proposer, shall conform to all applicable statutes, rules, and regulations of the federal government, the State of California, the City, and the County of Kern.

J. Background Review

The City reserves the right to conduct a background inquiry of each proposer that may include the collection of appropriate criminal history information, contractual and business associations and practices, employment histories, reputation in the business community, and financial condition. By submitting a proposal to the City the proposer consents to such an inquiry and agrees to make available to the City such books and records the City deems necessary to conduct the review.

II. PROPOSAL INFORMATION AND REQUIREMENTS

A. General Instructions

To receive consideration, proposals shall be made in accordance with the following general instructions:

1. The completed proposal shall be without alterations or erasures. Errors may be crossed out and corrections printed in ink or typed adjacent and must be initialed in ink by an authorized representative of the proposer.

2. No oral, telephonic, telegraphic, e-mailed, or faxed proposals will be considered.

3. The submission of a proposal shall be an indication that the proposer has investigated and satisfied him/herself as to the selection process to be used by the City, the conditions to be encountered, the character, quality, experience, and the requirements of the City.

4. All proposals shall remain firm for one hundred and eighty (180) days from the proposal submission deadline.

B. Business Address

Proposers shall furnish their business street address. Any communications directed either to the address so given, or to the address listed on the sealed proposal container, and deposited in the U.S. Postal Service by Certified Mail, shall constitute a legal service thereof upon the proposer.

C. Corrections and Addenda

If a proposer discovers any ambiguity, conflict, discrepancy, omission, or other error in this RFP, the proposer shall immediately notify the Contact Person of such error in writing and request clarification or modification of the document. Modifications will be made by addenda as indicated below to all parties in receipt of this RFP.

If a proposer fails to notify the Contact Person prior to the date fixed for submission of proposals of a known error in the RFP, or an error that reasonably should have been known, the proposer shall submit a proposal at their own risk, and if the proposer is awarded a contract they shall not be entitled to additional compensation or time by reason of the error or its subsequent correction.

An addenda issued by the City interpreting or changing any of the items in this RFP, including all modifications thereof, shall be incorporated into the proposal.

The proposer shall sign and date the Addenda Cover Sheet and submit the same with the proposal (or deliver them to City Hall at 21000 Hacienda Blvd if the proposer has previously submitted a proposal to the department).

Any oral communication by the City's designated Contact Person or any other City staff member concerning this RFP is not binding on the City and shall in no way modify this RFP or the obligations of the City or any proposers.

D. Proposal Format and Contents

For ease of review and to facilitate evaluation, the proposals for this project should be organized and presented in the order requested as follows:

1. Cover Page:

   Include a letter of introduction signed by an authorized representative of the firm certifying that all statements in the proposal are true and correct and shall constitute a warranty, the falsity of which shall entitle the City to pursue any remedy authorized by law, which shall include the right, at the option of the City, to declare any contract made as a result thereof, to be void. Indicate the name of the firm and the RFP project title.

2. Section I – Proposal:

   Provide the Proposal with specific information concerning the firm in this section, including the legal name, address, and telephone number of your company and the type of entity (sole proprietorship, partnership, or corporation and whether public or private).

   Include the name and telephone number of the person(s) in your company authorized to execute the proposed contract.

   If two or more firms are involved in a joint venture or association, the proposal(s) should clearly delineate the respective areas of authority and responsibility of each party.

   All parties signing the Agreement with the City shall be individually liable for the completion of the entire project even when the areas of responsibility under the terms of the joint venture or association are limited

3. Section II - Qualifications and Experience:

This section is designed to establish the proposer as an entity with the ability and experience to complete the proposed work, as specified in the RFP. Provide specific information in this section concerning the firm's experience in the services specified in this RFP, preferably within the State of California. Include the number of employees involved in providing services, the certifications/licenses they possess, and the number of years providing services.

Documentation of Satisfactory Past Performance/References. Provide a minimum of three (3) reference letters for similar services rendered (must be within the last six (6) months on the reference company's letterhead. Each reference shall include a current point of contact and a phone number. Each reference letter must have the following information: Date of the original contract; end date of the contract; services rendered; and names, addresses, and telephone numbers of contact persons within client agencies for whom the services have been provided.

4. Section IV - Insurance:

The selected proposer will be required to obtain all the insurances that the city requires as a condition of the contract award.

E. Pre-Proposal Meeting

A Pre-Proposal meeting has been set for September 17, 2024, at 10:00 am. The meeting will be held at City Hall Building 21000 Hacienda Blvd; California City, CA 93505. The purpose of the meeting is to permit proposers an opportunity to see ask questions, and/or provide feedback to City staff on the RFP. Preliminary answers may be given at the Pre-Proposal meeting. However, these responses are only preliminary and will not be final until they are provided as an addendum to the RFP. While some input obtained at the meeting may be incorporated into the RFP via addenda, remarks, and explanations made at the meeting shall not change the provisions of the final RFP.

All interested parties who may have questions are urged to attend.

F. Proposal Submission

The proposer shall submit four (4) written copies of the proposal and, if possible, one (1) copy on a flash drive (FD). The FD must be in a standard Microsoft Windows compatible format readable by the City; using word processing software

that is Windows-based, or the proposal will be a PDF-readable Adobe. Please submit all proposals to:

City of California City
Attn: City Clerk
21000 Hacienda Blvd
California City, CA 93505
Telephone: (760) 373-7140

Proposals may be delivered in person, by courier service, or by mail to the address indicated above. ALL PROPOSALS MUST BE SEALED AND RECEIVED BEFORE 2:00 PM. on October 1, 2024, at the above office and address. Proposals submitted after the above deadline will not be accepted. It is strongly suggested that any proposers intending to hand deliver a proposal on the last day for submission arrive at City Hall 21000 Hacienda Blvd; California City, CA 93505 at least ten (10) minutes prior to the proposal receipt deadline to receive a "test" time stamp to validate the official current time. The timestamp clock at City Hall 21000 Hacienda Blvd; California City, CA 93505 will be the official time. Any proposal received at or after 2:00 pm. will be returned unopened.

Only one (1) proposal may be submitted from each proposer. For purposes of this RFP, a proposer is defined to include a parent corporation of the proposer and any other subsidiary of that parent corporation. If a proposer submits more than one (1) proposal, all proposals from that proposer shall be rejected.

RFP proposals are not publicly opened.

G. Withdrawal and Submission of Modified Proposal

A proposer may withdraw a proposal at any time prior to the submission deadline by submitting a written notification of withdrawal signed by the proposer or his/her authorized agent. The proposer must, in person, retrieve the entire sealed submission package. Another proposal may be submitted prior to the deadline. A proposal may not be changed after the designated deadline for submission of proposals.

H. Disposition of Proposals and Proprietary Data

All materials submitted in response to this RFP become the property of the City. Any and all proposals received by the City shall be subject to public disclosure and inspection, except to the extent the proposer designates trade secrets or other proprietary data to be confidential after the Evaluation Committee has completed its deliberative process and either the proposer has been informed that they are not the vendor selected by the Evaluation Committee for recommendation to the City Council, or the matter has been set for consideration before the City Council, whichever comes first.

Material designated as proprietary or confidential shall accompany the proposal and each page shall be clearly marked and readily separable from the proposal in order to facilitate public inspection of the non-confidential portion of the proposal. Prices, makes and models or catalog numbers of the items offered, deliverables, and terms of payment shall be publicly available regardless of any designation to the contrary. The City will endeavor to restrict the distribution of material designated as confidential or proprietary to only those individuals involved in the review and analysis of the proposals.

Proposers are cautioned that materials designated as confidential may nevertheless be subject to disclosure. Proposers are advised that the City does not wish to receive confidential or proprietary information and that proposers are not to supply such information except when it is absolutely necessary. If any information or materials in any proposal submitted is labeled confidential or proprietary, the proposal shall include the following clause:

(legal name of proposer) shall indemnify, defend and hold harmless the City of California City, its officers, agents, and employees from and against any request, action, or proceeding of any nature and any damages or liability of any nature, specifically including damages awarded under the California Public Records Act (Government Code §6250 et seq.) arising out of, concerning or in any way involving any materials or information in this proposal that (legal name of proposer) has labeled as confidential, proprietary or otherwise not subject to disclosure as a public record.